

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Havumaki	Team: Team # 7	CCRB Case #: 200802601	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/18/2008 1:43 AM	Location of Incident: On 62nd Street in between Fort Hamilton Parkway and 9th Avenue	Precinct: 68	18 Mo. SOL 8/18/2009	EO SOL 8/18/2009	
Date/Time CV Reported Wed, 02/20/2008 6:19 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/20/2008 6:19 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Arsenio Camilo	08063	938152	068 PCT
2. POM Louis Latorre	13771	943454	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Louis Latorre	Abuse: PO Louis Latorre stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.POM Arsenio Camilo	Abuse: PO Arsenio Camilo stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
C.POM Arsenio Camilo	Abuse: PO Arsenio Camilo searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
D.POM Louis Latorre	Abuse: PO Louis Latorre searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
E.POM Arsenio Camilo	Abuse: PO Arsenio Camilo searched § 87(2)(b) and § 87(2)(b) and § 87(2)(b).	

Synopsis

On February 20, 2008, § 87(2)(b) came to the CCRB and filed the following complaint:

On February 18, 2008, at approximately 1:43 AM, § 87(2)(b) and § 87(2)(b) were pulled over in front of 1322 62nd Street in Brooklyn by PO Arsenio Camilo and PO Louis Latorre (Allegations A and B). PO Camilo and PO Latorre approached § 87(2)(b)'s Sport Utility Vehicle and PO Camilo demanded § 87(2)(b)'s documentation. It was presented, though § 87(2)(b)'s insurance paperwork was outdated. § 87(2)(b) and § 87(2)(b) were ordered to step out of the SUV. Then PO Latorre and PO Camilo allegedly searched the vehicle (Allegations C and D). While standing outside, PO Camilo ordered § 87(2)(b) and § 87(2)(b) to lift up their shirts (Allegation E). After § 87(2)(b)'s record was checked, he and § 87(2)(b) were released.

§ 87(2)(g)

While PO Latorre was unable to articulate why he had stopped § 87(2)(b) and § 87(2)(b), PO Camilo explained that it was because the two fit the description of suspects in an ongoing robbery pattern. PO Camilo reported that he had been instructed to be on the lookout for two or three Hispanic or Arab males in a Sport Utility Vehicle. § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b)-old black male resident of Brooklyn, § 87(2)(b) and has black hair and brown eyes, came to the CCRB and filed a complaint on February 20, 2008 (Enclosure 5A-E). The following is a synopsis of his statement to the CCRB:

On February 18, 2008, at approximately 1:00 AM, § 87(2)(b) was with a friend, § 87(2)(b). They were returning from a visit to *White Castle* restaurant, which is located on Fort Hamilton Parkway in Brooklyn. § 87(2)(b) was driving and turned from Fort Hamilton Parkway onto 62nd Street, a very desolate area next to a rail-yard. After making the turn, he saw a marked police car, numbered 1518, coming the wrong way towards them at about twenty-five miles per hour, without its lights on.

The police car pulled off the road to let § 87(2)(b) pass. As § 87(2)(b) passed the police car at about fifteen miles per hour, he looked out his rolled-down window at the driver of the police car, later identified by § 87(2)(b) as PO Arsenio Camilo. PO Camilo gave § 87(2)(b) a “nasty look.” § 87(2)(b) continued driving, though, not paying much attention to the glance. He and his friend § 87(2)(b) were listening to the radio.

The police car turned around and pursued them, with its flashers on. § 87(2)(b) pulled over, rolled down all his windows, and turned on his dome light. Both § 87(2)(b) and § 87(2)(b) were wearing seatbelts. PO Camilo and his partner, later identified by § 87(2)(b) from his uniform nametag as PO Louis Latorre, came over to the stopped car.

PO Camilo was a short Hispanic officer, approximately 5’5” tall. He had light brown skin and was very thin. He was completely bald, without facial hair or glasses. He appeared to be in his late-20s. PO Latorre was about the same height, lighter skinned, and appeared to be Hispanic or Italian. His build was about the same as PO Camilo’s or possibly a “bit chunkier,” and he appeared to be the same age. He probably had a moustache and chin length hair. Both officers were in uniform.

§ 87(2)(b) asked why he had been pulled over. PO Camilo replied by asking for § 87(2)(b)'s documentation. § 87(2)(b) explained to him that while the car had valid registration and insurance, not all of his documentation was up to date. Specifically, he was missing proof of his current insurance. He explained to the investigator that he has been unable to travel to Virginia, the only way to get said documentation.

Upon hearing this, PO Camilo started "getting at him, with the attitude." He raised his voice, yelling a little bit, and was verbally abrasive. § 87(2)(b) thought that PO Camilo was trying to "shake them up." PO Camilo and PO Latorre then looked into the car with flashlights. On the back seat were two full, closed beer bottles in plain sight. These were given to § 87(2)(b) on an earlier visit to a friend's restaurant.

PO Camilo asked § 87(2)(b) if he had stuffed something under the seat of the car. PO Latorre then commanded § 87(2)(b) and § 87(2)(b) to get out of the car. § 87(2)(b) refused, stating, "We are not in the commission of a crime." PO Camilo then yelled, "Didn't my partner tell you to get out of the car." § 87(2)(b) explained to the investigator that the officers were playing a "typical good-cop bad cop" routine. § 87(2)(b) also stated that there was "zero-probable cause." § 87(2)(b) and § 87(2)(b) were instructed to stay on the sidewalk. The officers, meanwhile, were still talking about the outdated insurance information. § 87(2)(b) advised him to look up his status; he had nothing to hide.

The two officers then searched the front of the SUV. They did not search in the back seat or the trunk. Because it is an SUV, they could see everything in the car – "everything is in plain sight." PO Latorre searched under the passengers' seat while PO Camilo searched under the drivers' seat.

Then, PO Camilo told § 87(2)(b) and § 87(2)(b) to lift their shirts up and turn around. They both lifted their shirts up. PO Latorre shined a flashlight on them. When § 87(2)(b) was asked if either he or § 87(2)(b) was frisked or searched, § 87(2)(b) replied, "No, they didn't. I guess if we weren't compliant, or didn't know some of our rights, they would have done it."

Then PO Camilo went to run § 87(2)(b)'s record, while PO Latorre continued to search the car for "a good minute." He found nothing.

§ 87(2)(b) explained to the investigator that neither he nor his friend, § 87(2)(b) was acting suspiciously. Neither of them looked visibly drunk. Rather, both were generously cooperative. § 87(2)(b) said that he could have locked the door, hindering a search, but chose not to.

§ 87(2)(b) inquired of PO Latorre why they had been stopped, indicating that there was no reason they should be standing outside the vehicle. PO Latorre asked, "What, you know the law better than my partner?" § 87(2)(b) replied that he did.

Finally, the two were allowed to go back to the car, where they waited for "a good three more minutes." PO Camilo returned to § 87(2)(b)'s vehicle. Without making eye-contact, he reached his hand through the window and returned the paperwork. He did not issue any summonses. § 87(2)(b) reached his head out the window to record PO Camilo's shield number. He had already studied the officers' names and faces. PO Camilo noticed this and said, abrasively, "Camilo, 08063."

§ 87(2)(b), a § 87(2)(b) male resident of Brooklyn who is of mixed racial background, § 87(2)(b), and has black hair and brown eyes, was interviewed over the phone on June 20, 2008 (Enclosure 10A-B). Following this interview, the undersigned CCRB investigator sent § 87(2)(b) a verification statement. § 87(2)(b) did not return this to the CCRB, despite multiple phone calls from the investigator, imploring him to send this form back to the CCRB (See investigative actions; Enclosure 20A-F). The following is a synopsis of § 87(2)(b)'s statement:

At some time between 1:00 AM-1:30 AM on February 18, 2008, § 87(2)(b) was returning from a White Castle located at the intersection of Fort Hamilton parkway and 43rd Street, with his friend, § 87(2)(b) who was driving. As they rode up 62nd Street towards McDonald Avenue, a regular marked police

car passed, going the wrong way down 62nd Street with its lights flashing but no sirens. § 87(2)(b) did not make eye contact with this car's occupants. § 87(2)(b) pulled his car over to allow the police to pass. After about thirty seconds, the police car pulled up directly behind § 87(2)(b) with its lights flashing, and again, without its sirens on. § 87(2)(b) lowered all four of his windows and turned on the lights in his car.

Two police officers approached the car. Neither § 87(2)(b) nor § 87(2)(b) moved in a suspicious manner after they were stopped, and did not do anything that would have rocked the car. PO Camilo went to the driver's side window and PO Latorre went to the front passenger window. § 87(2)(b) identified these officers from their uniform nametags. PO Camilo was a dark tan-skinned male. He was about 5'8" tall and weighed approximately 160 pounds. He had very short close cut hair, and may even have been bald, and appeared to be about twenty-five years old. PO Latorre was a light-skinned male. He was about 5'9" tall and appeared to weight around 180 pounds. He had pushed back dirty blonde hair and appeared to be around twenty-eight years-old.

PO Camilo asked for § 87(2)(b)'s license, registration and insurance information. § 87(2)(b) explained that his insurance paperwork was old, though his coverage was up to date; his registration and license were current. He told the officers that he had no problem with them checking that everything was up to date. The two officers, but especially PO Camilo, responded by yelling, "What are you doing? Why are you driving around with the wrong paperwork? Why is your stuff not up to date? What are you hiding?" § 87(2)(b) and § 87(2)(b) were asked repeatedly where they were coming from. While speaking with § 87(2)(b) and § 87(2)(b) the officers shined their flashlights into the car to search from outside. The officers also asked § 87(2)(b) and § 87(2)(b) if there were any drugs or weapons in the car. They replied no.

PO Camilo returned to his car with § 87(2)(b)'s paperwork. PO Latorre asked § 87(2)(b) and § 87(2)(b) to step out of the vehicle. § 87(2)(b) asked why, given that no crime had been committed and his paperwork was legitimate. He stated that they had been pulled over without probable cause. PO Camilo returned and screamed, "Didn't you hear my partner? He said get out of the car. Step out of the car." § 87(2)(b) and § 87(2)(b) then stepped out of the car and closed the doors. They stood in the street. PO Camilo opened a door and started to search the car, while PO Latorre kept his eyes on § 87(2)(b) and § 87(2)(b).

PO Latorre asked § 87(2)(b) and § 87(2)(b) to step onto the sidewalk. They complied. He instructed them to keep their hands visible. He yelled at § 87(2)(b) and § 87(2)(b) "You guys think you know the law, you think you know more than me and my partner?" PO Latorre also searched the car, while PO Camilo kept his eyes on § 87(2)(b) and § 87(2)(b). While it was difficult for § 87(2)(b) to see how the officers searched § 87(2)(b)'s car, his back essentially turned to the car, he indicated that they searched under the seats including the back seat, looked in the glove compartment and searched the middle console.

There was a lone closed Heineken beer bottle in the car. § 87(2)(b) explained that a friend had left it in the car. § 87(2)(b) believed that this individual had merely forgotten the bottle in the car. He stated that he and § 87(2)(b) had driven around with it in the car without even knowing. § 87(2)(b) did not know where the beer was found. He believed that the officers found the bottle during their search, not before; when they were asked to step out of the car, and § 87(2)(b) asked the officers what their reason was, the officers did not mention the beer bottle. After finding the beer bottle, the two officers asked both § 87(2)(b) and § 87(2)(b) about it. They explained that it had been left by a friend whom they had met at a restaurant. There was no further discussion about it.

PO Latorre instructed § 87(2)(b) and § 87(2)(b) to turn their backs, bend over and lift up their shirts. They complied, bending over and lifting their shirts. Neither § 87(2)(b) nor § 87(2)(b) was searched beyond this, though flashlights were shined on them while they bent over and lifted their shirts. § 87(2)(b) was asked if he was "patted down," and he replied: "I don't recall, I don't think they did." When he was asked if he saw § 87(2)(b) get patted down, he replied 'no'.

After three to five minutes standing outside, § 87(2)(b) and § 87(2)(b) were told to get back in the car. PO Camilo returned the paperwork, without offering an explanation for the stop and told them to leave.

Results of Investigation

Witness Statements

There are no known civilian or police witnesses to this incident.

Identification of Police Officers

§ 87(2)(b) told the CCRB that he identified PO Camilo and PO Latorre by their uniform nametags. Neither of these officers denied their involvement in this incident. Further, the Roll Call confirms that PO Camilo and PO Latorre worked together on February 18, 2008 (Enclosure 15A-F).

Police Officer Statements

PO Arsenio Camilo

PO Arsenio Camilo, a Hispanic male police officer assigned to the 68th Precinct, who is a 5'7" tall, weighs 186 pounds and has black hair and brown eyes, was interviewed at the CCRB on April 29, 2008 (Enclosure 12A-B). The following is a synopsis of his statements made to the CCRB and recorded in police documents:

Stop, Question and Frisk Report/UF-250

PO Camilo completed a UF 250 report for both § 87(2)(b) and § 87(2)(b). The reports were identical, except for the different pedigree information entered for § 87(2)(b) and § 87(2)(b). § 87(2)(b) is described as a 6'3" tall black male weighing 250 pounds and having brown eyes, black hair and a 'heavy' build. § 87(2)(b) is described as 6'2" Black Hispanic Male weighing 140 pounds and having brown hair, black eyes, and a 'heavy' build. PO Camilo reported that he stopped them at 1:45 AM on February 18, 2008 at 1322 62nd Street, which is between 13th and 14th Avenues. He indicated that § 87(2)(b) and § 87(2)(b) were stopped because they were suspected of committing a felony, though he did not specify which felony, and noted in the 'circumstances leading to a stop' section that both § 87(2)(b) and § 87(2)(b) "fits description" of a suspect. As an 'additional factor', PO Camilo wrote that "Area has high incidence of reported offense". He also indicated that § 87(2)(b) and § 87(2)(b) were frisked, writing that their respective "furtive movements" were the basis for their frisks.

Memobook

In his memobook, PO Camilo recorded that he stopped two males at 1:43 AM on February 18, 2008 in front of 1322 62nd Street. At 1:49 AM, he recorded "# 1050." He gave this stop a disposition of '93Q', indicating that a report was prepared (Enclosure 11A-D).

Formal CCRB Statement

On February 18, 2008, PO Camilo worked with partner PO Louis Latorre, from 11:15 PM until 7:50 AM. They were in uniform and rode in a vehicle on "summons auto" assignment.

On February 18, 2008, at approximately 1:00 AM, PO Camilo and PO Latorre were driving the wrong way up 62nd Street in Brooklyn. Their lights were likely turned on. This stretch of 62nd Street is residential on one side, with single family houses, and features an MTA "railroad cut" on the other. It was relatively dark. Already aware of an ongoing armed-robbery pattern in the 68th and 66th Precincts that had begun in December 2007, PO Camilo was instructed before this tour at roll call to pay particular attention to Sector 'C' (where § 87(2)(b) would be pulled over). PO Camilo and PO Latorre saw a white SUV with out-of-state plates approach, turned on their sirens and pulled this vehicle over. The SUV stopped on the right side of the street, and the officers stopped their car behind it, obstructing traffic, so that they would not risk being hit by an oncoming car. PO Camilo noted that he had observed two Hispanic males in the car prior to pulling it over, and had been earlier advised that the suspects in this string of robberies were two or three Hispanic or Arab males, fleeing in an SUV. He also explained that often times, out-of-state plates are stolen or carried by an unregistered car.

PO Camilo approached the SUV with his flashlight in his hand. His car's strobe-light was on, and PO Camilo observed the SUV rocking from side-to-side, indicating that its passengers were moving, perhaps even trying to conceal something. However, PO Camilo was unable to see into the SUV through its back window; this window was likely tinted. PO Camilo walked over to the driver's side of the SUV and PO Latorre went to the passenger's side. Standing behind the driver's side door (not "parallel" to it), PO

Camilo asked for license, registration and insurance. A license and registration were presented, though PO Camilo did not recall who presented it. He did not recall whether he was given insurance information and was unsure whether he saw movement at this point.

At a certain point – PO Camilo was unable to recall when exactly this was – PO Camilo and his partner searched the SUV from the outside by shining their flashlights in through the windows. PO Camilo never entered the car, and though he did not remember specifically, he thought it unlikely that his partner had entered. After PO Camilo noticed some Coronas in the SUV, he asked the suspects to get out of the vehicle. They complied, standing on the sidewalk. PO Camilo explained that after seeing alcohol, he became concerned for his own safety, fearing that the individuals who he had stopped might be intoxicated. He instructed them to stand on the same side of the sidewalk, so that the officers could watch both of them at the same time. He did not remember how many Coronas there were in the car, or whether they were open. § 87(2)(b) and his friend were then frisked for weapons. PO Camilo remembered frisking one of them; he was unsure whether he frisked both of them, or whether his partner participated in a frisk. He did not search either of them, though. Then, PO Camilo asked them to lift up their shirts, which they did. He explained that they were both heavyset, and he was concerned that they might be hiding a weapon under their guts. No contraband was found.

PO Camilo questioned the two passengers. They denied drinking. They also denied moving inside their vehicle after being stopped. He recalled, though was uncertain, that they had told him they were coming from *White Castle*. After some questioning, PO Camilo determined that these men were not suspects in the string of robberies, nor were they intoxicated, and released them. A UF-250 was prepared for the detectives working on this pattern to document the stop.

PO Camilo characterized § 87(2)(b)'s demeanor during this stop as “not very compliant,” arguing and disputing what he said. Though he did not remember precisely, he believed that the passenger too was not very cooperative.

PO Louis Latorre

PO Louis Latorre, a § 87(2)(b) year-old white male police officer assigned to the 68th Precinct, who is 5’10” tall, weighs 250 pounds, and has brown hair and brown eyes, was interviewed at the CCRB on May 2, 2008 (Enclosure 14A-B). The following is a synopsis of his statements, recorded at the CCRB and in police documents:

Memobook

PO Latorre did not make any memobook entries for this incident (Enclosure 13A).

Formal CCRB Statement

On February 18, 2008, PO Latorre worked from 11:15 PM until 7:50 AM with partner PO Arsenio Camilo. They were in uniform and assigned to a motor vehicle, numbered 1518, working a “summons auto” assignment. There were no particular conditions for this assignment.

At approximately 1:00 AM on February 18, 2008, PO Latorre and PO Camilo stopped a vehicle on 62nd Street near the intersection of Fort Hamilton Parkway in Brooklyn, using their lights and sirens. PO Camilo was driving their RMP. PO Latorre did not recall why they stopped this car, or what the car looked like, though he stated that it was occupied by two males. He did not remember their race.

The officers exited their vehicle. PO Camilo walked towards the driver’s side of the car and PO Latorre headed over to the passenger’s side of the car. PO Latorre did not say anything as he approached the car; he did not remember whether his partner said anything. He did not remember the first thing he said, though he stated that PO Camilo conversed with the driver of the car. PO Latorre was unsure whether either occupant was asked for paperwork. After a short while, PO Latorre noticed two full beer bottles secured in the pocket behind a seat. He asked the passenger to step out of the vehicle, and PO Camilo asked the same of the driver. Both occupants complied. PO Latorre described these individuals as compliant through this interaction. He explained that he was concerned that they might have been drinking and wanted to

determine whether, for example, there were empty beer bottles at their feet inside the car; he “thought it odd” that there were two beer bottles in a back pocket in the car.

While the occupants stood on the sidewalk, PO Latorre searched the car from the outside, shining his flashlight inside through the windows. He did not find any contraband. He did not recall if his partner also searched with his flashlight. PO Latorre did not enter the vehicle; he did not see his partner enter, either. PO Latorre did not recall whether any orders were given to the two occupants while they stood on the side, or specifically, whether they were commanded to lift up their shirts. Nor did he recall whether they were frisked or searched.

Police Documents

- The Roll Call for February 18, 2008, verifies that PO Camilo and PO Latorre worked together on the first tour, assigned to ‘Summons Auto’. They drove RMP number 1518 (Enclosure 15A-F).
- The Police Department was unable to produce any records responsive to the CCRB’s request for documentation of the robbery pattern in the 66th and 68th Precincts described by PO Camilo (Enclosure 21R).

Civilians’ New York City Criminal Conviction Histories

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant’s CCRB Complaint History

This is § 87(2)(b)’s third CCRB complaint (Enclosure 4A) § 87(2)(b)

Subject Officer’s CCRB History

Neither PO Camilo nor PO Latorre has any substantiated CCRB allegations (Enclosures 2A & 3A).

Conclusions and Recommendations

Undisputed Facts

Most of the relevant facts in this case are not disputed. It is undisputed that PO Camilo and PO Latorre pulled over § 87(2)(b) and § 87(2)(b) that the officers commanded § 87(2)(b) and § 87(2)(b) out of the car, and that § 87(2)(b) and § 87(2)(b) were then ordered to bend over and lift up their shirts.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

At approximately 1:43 AM on February 18, 2008, § 87(2)(b) was driving on 62nd Street in Brooklyn with his friend § 87(2)(b) when PO Arsenio Camilo and PO Louis Latorre pulled up behind them, stopping them in front of 1322 62nd Street.

PO Camilo alleged that as he approached § 87(2)(b)’s vehicle, he noticed the car rocking from side-to-side. § 87(2)(g)

PO Camilo asked § 87(2)(b) for his license, registration and insurance information. § 87(2)(b) presented the documentation, explaining to PO Camilo that his insurance paperwork was not current, though his

insurance coverage was up to date. After some conversation or argument, § 87(2)(b) and § 87(2)(b) were ordered out of the car. § 87(2)(b) objected, but both he and § 87(2)(b) complied and left the car.

Both § 87(2)(b) and § 87(2)(b) alleged that PO Camilo and PO Latorre then searched § 87(2)(b)'s car. § 87(2)(g) § 87(2)(b) alleging that the officers only entered the front area of the car, leaving the back seat and trunk unsearched, and § 87(2)(b) claiming that the officers searched both the front and rear seats of the car. PO Camilo denied entering the car, and stated that while he did not definitively remember, he thought it unlikely that PO Latorre entered the car. PO Latorre likewise denied entering the car, and stated that he did not see PO Camilo enter the car. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) PO Camilo claimed that they were and prepared Stop, Question and Frisk Reports that documented it, § 87(2)(b) and § 87(2)(b) both denied being frisked. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

After checking § 87(2)(b)'s record, PO Camilo and PO Latorre released § 87(2)(b) and § 87(2)(b) and PO Camilo prepared two Stop, Question and Frisk reports.

Allegations not Pleaded

§ 87(2)(b) alleged that PO Camilo was verbally abrasive towards him and yelled at him. § 87(2)(b) added that PO Latorre also yelled at both § 87(2)(b) and himself. § 87(2)(g)

§ 87(2)(g)

Also, while PO Camilo testified that both § 87(2)(b) and § 87(2)(b) were frisked, neither of the latter two made this allegation. § 87(2)(g)

Allegation A: Abuse of Authority: PO Louis Latorre stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B: Abuse of Authority: PO Arsenio Camilo stopped the car in which § 87(2)(b) and § 87(2)(b)
An officer may lawfully stop a vehicle if he has reasonable suspicion that its driver has violated the Vehicle and Traffic Law or, in the case of a stop intended to investigate criminal activity, suspects reasonably that the vehicle's occupants have committed, are presently committing or are about to commit a violation of the law (See Kamins § 5.02[2][a]; Enclosure 1A-H). § 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) In *New York Search and Seizure*, Barry Kamins impugns such overly broad criteria, writing, "...if an officer stops a vehicle because an occupant fits a description of a perpetrator that is so generic as to be meaningless, the stop will be unlawful (See Kamins § 5.02[2][b]; Enclosure 1A-H). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As an additional basis for this stop, PO Camilo told the CCRB that the SUV that § 87(2)(b) and § 87(2)(b) were in had out-of-state license plates. § 87(2)(g) Kamins writes, “An officer cannot stop a vehicle merely because it is seen in a high crime area, even if it happens to be a rented car from another state” (See Kamins § 5.02[2][b]; Enclosure 1A-H).

§ 87(2)(g)

§ 87(2)(g)

PO Camilo reported identical factors for the stops of § 87(2)(b) and § 87(2)(b) noting that that they each “fits description” (of a suspect in a crime), and that they were stopped in an area that has a “high incidence of reported offense.” § 87(2)(g)

Allegation C: Abuse of Authority: PO Arsenio Camilo searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation D: Abuse of Authority: PO Louis Latorre searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

Allegation E: Abuse of Authority: PO Arsenio Camilo searched § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

Absent a warrant or an arrest, an officer may search an individual only if he has probable cause to believe that the individual is armed, has probable cause to believe that the individual will damage or destroy concealed contraband before the officer can secure a search warrant, or if the individual consents to be searched (See Kamins § 4.03 and Kamins § 2.05[1]; Enclosure 1A-H).

PO Camilo told the CCRB that he searched § 87(2)(b) and § 87(2)(b) because he feared that they were armed. PO Camilo explained that he was so concerned because both § 87(2)(b) and § 87(2)(b) are overweight, and could have possibly concealed weapons under their midsections. His suspicion was further elevated by his hunch that they were involved in a pattern of violent crime. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: